



United States
Attorney's Office
Northern District of Ohio



Rebecca C. Lutzko Announces Resignation from Service as U.S. Attorney for the Northern District of Ohio

Friday, January 3, 2025

For Immediate Release

U.S. Attorney's Office, Northern District of Ohio

CLEVELAND – United States Attorney for the Northern District of Ohio **Rebecca C. Lutzko** announced today that she will step down as the region's chief federal law enforcement officer, effective 11:59 p.m. on Jan. 3, 2025. Under the Vacancies Reform Act, First Assistant U.S. Attorney **Carol M. Skutnik** will become the Acting United States Attorney, effective midnight on Jan. 4, 2025.

Ms. Lutzko was nominated by President Joseph R. Biden on June 7, 2023 and, while pending Senate confirmation, was installed as the interim U.S. Attorney on June 9, 2023, by the United States District Judges for the Northern District of Ohio.

"It has been the single greatest honor of my career to lead the Office and serve the people of northern Ohio as their United States Attorney," said U.S. Attorney Lutzko. "I thank President Biden, Senators Sherrod Brown and J.D. Vance, Attorney General Merrick Garland, and the Judges of our District Court for giving me that opportunity."

During her tenure as U.S. Attorney, Ms. Lutzko led an office of approximately 175 prosecutors, civil litigators, and administrative and support personnel in its mission to enforce federal civil and criminal laws, advocate for crime victims, and represent the interests of the United States, its agencies, and their employees in court. In this role, she oversaw prosecutions involving violent crime and organized gang activity, financial crime, national security matters, public corruption, hate crimes and other civil rights violations, drug trafficking organizations, child exploitation, cybercrime, and firearms crimes, among others. On the civil front, she oversaw investigations and the filing of affirmative actions in areas as diverse as protecting the environment, ensuring fair housing, protecting disability rights, and addressing healthcare frauds and controlled substance violations in which the Office recovered tens of millions of dollars in waste, fraud, and abuse. She hired several new civil and criminal Assistant U.S. Attorneys

(AUSA), created the district's first e-Litigation unit, and implemented numerous internal training, efficiency, and accountability measures.

"I am incredibly proud of the work our office has undertaken and our employees' collective efforts to do the right thing, the right way, for the right reasons. We have been strategic in the types of cases we have pursued to maximize the positive impact to the communities that we are honored to serve, and we have held ourselves to standards of excellence and integrity in pursuing those cases," said U.S. Attorney Lutzko. "We have accomplished much in a limited amount of time, despite challenging budgetary constraints. I have dedicated almost 20 years of my career to prosecuting criminals and seeking justice so that life can be better for Ohioans. I am confident that our Office's many career public servants will continue to uphold the Department of Justice's norms, making impartial, reasoned, and fair decisions to obtain justice. Credit for our successes during my tenure belongs to them, and to our federal, state, and local law enforcement officers for their unending dedication and redoubled efforts to help our Office combat both violent and non-violent crimes to keep our citizens and their neighborhoods safe and free from financial harm, to allow our citizens to enjoy their civil rights, and to prevent additional crime before it happens."

The Northern District of Ohio covers the state's 40 northern counties and is home to more than 5.7 million people. The main office is in Cleveland, with branch offices located in Akron, Toledo, and Youngstown.

Under U.S. Attorney Lutzko's leadership, the Office has achieved noteworthy success in criminal and civil cases. Even with her focus on strategic case selection emphasizing impact over numbers, the Office remained one of the most productive large U.S. Attorney's Offices in the nation according to several different metrics. Some of the more notable cases and outreach efforts include the following:

Public Safety & Violent Crime Reduction

U.S. Attorney Lutzko has prioritized combatting violent crime and promoting public safety, encouraging the use of data-driven strategies to identify and focus on the most significant drivers of crime and through purposeful case selection and charging decisions, with the goal of prosecuting cases that will have significant, positive community impact. She and her staff worked closely with the Bureau of Alcohol, Tobacco, Firearms, and Explosives (ATF) and other law enforcement partners to open a new Crime Gun Intelligence Center (CGIC) in the District in 2024. Located in a single facility, a team of firearm evidence examiners, intelligence analysts, and investigators can now rapidly collect, analyze, and share information about guns used in violent crimes. The CGIC serves as a hub for federal and local law enforcement to investigate and prevent gun violence in the region, utilizing cutting-edge technology and tracing systems to rapidly develop and pursue investigative leads to identify, prosecute, convict, and lock up the bad actors who commit violent crimes and remove "crime guns" from the streets faster, so neither continue to endanger innocent people in neighborhoods throughout Northern Ohio. Notably, violent crime rates have dropped significantly in Northern Ohio this year.

Some other notable investigations and cases include:

- *Violent Crime Reduction Operation* – After a three-month, violent crime reduction initiative in the summer of 2023, a total of 84 defendants were charged in connection with firearms-trafficking, straw purchasing firearms, narcotics, conspiracy, and other firearms offenses. The investigation was led by the ATF and resulted in the seizure of more than 255 firearms, of which 47 were traced back to other crimes. The seizure also included 17 untraceable firearms, also known as “ghost guns.” Seventy defendants were charged federally and the remaining 14 faced state charges. Sixty of those entered guilty pleas, 49 of which have been sentenced to date. Of the 14 defendants charged in the state, 12 have pled guilty and been convicted and sentenced. Noteworthy prison sentences for charged federal firearms violations include Darvell Jackson, sentenced to 168 months; Cortez Buggs sentenced to 132 months; Kenneth Smith sentenced to 135 months; Darion Shelton, sentenced to 100 months; and Willie Earl Jackson sentenced to 84 months.
- *U.S. v. Mullins, et al.* – Twenty-one members and associates of a Cleveland-based, violent street gang known as the Fully Blooded Felons were arrested and charged beginning in December 2023 and continuing into 2024. The defendants are alleged to have committed numerous federal crimes, including Racketeer Influenced and Corrupt Organizations (RICO) conspiracy, murder in aid of racketeering, kidnapping in aid of racketeering, assault in aid of racketeering, firearms violations, conspiracy, and drug trafficking. As the indictment alleges, the gang styled themselves after a Mafia crime family, conspired to commit numerous violent acts, and operated an open-air illegal drug market in Cleveland’s Cedar Central neighborhood for years.
- *U.S. v. McKillips* – A Sandusky man was sentenced to 41 months in prison after his guilty plea to interstate communication of threats and unlawful possession of a machine gun. He made multiple online threats to harm or kill law enforcement officers, including by posting a photo of himself aiming a semi-automatic rifle at an officer parked in a police vehicle down the street.
- *U.S. v. Sledge, et al.* – In October 2024, an Ohio father-son team were indicted for the murder of an on-duty U.S. Postal Service mail carrier. The Office has also separately brought several other indictments and/or obtained convictions for defendants throughout the district who have robbed mail carriers to steal their blue-mailbox keys and mail.
- *U.S. v. Matheny* – On Oct. 26, 2022, a bank in Lorain, Ohio, was robbed by a man armed with a small silver semi-automatic firearm. The teller reported that the suspect entered, approached the counter, and slid a note under plexiglass indicating that it was robbery, that he had a gun, not to touch the alarm, and to hand over all fifty, hundred, and twenty-dollar bills. When the teller retrieved the cash from her drawer and handed it to him, he walked away with more than \$4,000 from the bank. The Lorain Police Department investigated anonymous tips and reviewed surveillance videos. Two days later, Matheny was located and then arrested after a police chase. A bookbag containing a loaded firearm, fentanyl, cocaine, and two cellphones were seized from Matheny. Matheny was convicted on all counts after a five-day trial in April 2024. In August, he was sentenced to 78 months in prison, plus 84 months consecutive for brandishing a firearm in during the course of a robbery, for a total of 162 months.
- *U.S. v. Hansen* – After he pled guilty to committing three, armed bank robberies in Michigan and Ohio, a Toledo man was sentenced to 348 months in prison and ordered to pay \$44,908.73 in restitution. In the Ohio robbery, Hansen aimed a pistol at bank employees and customers and forced them to lie down on the floor. After growing frustrated with the speed at which tellers were retrieving the money he demanded, Hansen grabbed money containers from a bill-dispensing machine and fled with approximately \$82,000. Officers apprehended Hansen a short time later.

In addition to bringing criminal prosecutions to combat violent crime, U.S. Attorney Lutzko and USAO staff also engaged in affirmative public outreach activities in an effort to promote public safety. For example, she brought together local community organizations and the Ohio Adult Parole Authority to work with the USAO to identify individuals recently released from state prison who were deemed at high-risk for committing future violent crime, but amenable to making positive change in their lives. That partnership is continuing with a pilot program that pairs those individuals with needed services and hands-on mentors to assist participants in charting a new course for themselves that avoids criminal conduct.

Taking a different tack, under U.S. Attorney Lutzko's direction, the USAO also led a "Safe Storage" awareness campaign to highlight firearms safety and help prevent accidents, self-harm, theft, and other unauthorized use of firearms. Thus far, the campaign has included public in-person events, public service announcements, and information dissemination. Additional events are scheduled for 2025.

Healthcare Fraud

As chief law enforcement officer in a district with multiple, sophisticated healthcare providers and facilities, U.S. Attorney Lutzko prioritized fighting fraud, waste, and abuse in federal healthcare programs through a combination of robust criminal and civil enforcement efforts. The Office's notable criminal convictions and sentences and civil settlements and judgments obtained during her tenure include the following:

- *U.S. v. Singh* – In February 2024, a jury convicted Ankita Singh, M.D., of six counts of healthcare fraud for signing false orders for orthotic braces that patients had never requested and did not need. Although she never saw, examined, or even spoke to these patients, she signed more than 11,000 such prescriptions for approximately 3,000 Medicare beneficiaries, causing the submission of more than \$8 million in fraudulent bills to Medicare for devices that were not medically necessary. Singh was sentenced to 26 months in prison, followed by two years of supervised release, and ordered to pay \$4,470,931.02 in restitution.
- *U.S. v. Bailey, et al.* – From 2017 through 2020, 21 individuals involved with the healthcare nonprofit entity Eye for Change Youth and Family Services, Inc., conspired and manipulated billing, falsified records, and used the identities of clients without authorization to bill Medicaid. Twenty defendants pled guilty, while one, Eric King, was convicted at trial in August 2023 for his role in the scheme, and for continuing to engage in similar fraudulent conduct at another provider. King and the scheme's leader, Alfonso Bailey, were each sentenced to 36 months in prison (in Jan. 2024 and June 2023, respectively). The defendants were ordered to pay \$4.5 million in restitution, with more than \$4.3 million forfeited from Eye for Change and Bailey.
- *Investigation of the Cleveland Clinic Foundation* – The Cleveland Clinic Foundation agreed to pay \$7,600,000 to resolve allegations that it violated the False Claims Act by submitting grant applications for health-related-research funding to the National Institutes of Health that contained materially false information.
- *U.S. ex rel. White, et al. v. Rite Aid Corp., et al.* – Rite Aid Corporation and 10 subsidiaries and affiliates agreed to pay \$7.5 million to settle the government's allegations of filling medically unnecessary prescriptions under the False Claims Act and Controlled Substances Act.

- *U.S. ex rel. Rzeszutko v. Elixir Insurance Co., et al.* – Three Rite-Aid subsidiaries, Elixir Insurance Company, RX Options LLC, and RX Solutions LLC, agreed to a \$101 million settlement that resolved allegations that they violated the False Claims Act when they did not accurately report drug rebates to the Medicare program.
- *U.S. v. Gerber, et al.* – In August 2024, a federal court permanently enjoined Ohio physician Gregory Gerber, M.D., from prescribing opioids and other controlled substances, and ordered him to pay \$4.7 million in a civil case alleging Controlled Substances Act and False Claims Act violations. Gerber also pled guilty to criminal drug-trafficking charges for writing numerous medically unnecessary prescriptions for addictive painkillers, including over 800 illegitimate prescriptions for a drug he was being paid to promote. In March 2024, Gerber was sentenced to 42 months in prison and ordered to pay \$861,892.13 in criminal restitution.

Other Fraud Schemes & Public Corruption

In addition to the serious long-term effect that financial crimes may have on individual victims, such crimes undermine the well-being of financial institutions and harm our entire community. Similarly, public corruption undermines the public's confidence in the public institutions and officials central to our democratic society. Accordingly, during U.S. Attorney Lutzko's tenure, the Office both criminally prosecuted such crimes and engaged in public outreach to prevent such crimes from occurring in the first place. Lutzko also served as a member of the White Collar Crime Subcommittee of the Attorney General's Advisory Committee (AGAC).

Notable efforts and case success in these areas included the following:

- *Elder Fraud Outreach* – U.S. Attorney Lutzko and her staff engaged in several outreach events to bring awareness to senior citizens about the dangers of financial scams.
- *Government Supply Chain and Procurement Fraud Task Force* – In 2024, the Office stood up this task force, bringing together white collar crime AUSAs, homeland security investigators, and numerous other federal investigative agencies to address large-scale supply chain and procurement fraud in government contracting, prioritizing fraud in connection with military, law enforcement, and public safety. A first of its kind in this District, the task force will focus on government contractors who provide faulty, counterfeit, or otherwise dangerous products, such as substandard medications or supplies purchased by the Veterans Administration, counterfeit or faulty electronics or software provided to NASA, or similar products supplied to the military.
- *U.S. v. Eid* – A Perrysburg man was sentenced to 30 months in prison for filing false tax returns and engaging in wire fraud that defrauded educational and government entities. He admitted to falsifying his income for his children to qualify for aid packages to colleges and private schools.
- *U.S. v. Page* – A Toledo man who described himself as a "social-justice activist" was sentenced to 42 months in prison after a jury convicted him of wire fraud and money laundering. Page defrauded donors of more than \$450,000 that they collectively gave to his nonprofit organization, "Black Lives Matter of Greater Atlanta," based on Page's false representations about how their money would be spent.
- *U.S. v. Khan* – In November 2023, a Michigan man was sentenced to 97 months in prison after earlier pleading guilty to bank fraud and attempted tax evasion in connection with a massive check-kiting scheme involving numerous banks. He was also ordered to pay more than

\$150,000,000 in restitution to the victims of his bank fraud and the IRS, and to serve three years of supervised release once released from prison.

- *U.S. v. Pounds* – A Toledo-area man was sentenced to 94 months in prison after pleading guilty to conspiracy to commit wire fraud, wire fraud, and money laundering in a scheme to obtain Small Business Administration (SBA)-financed loans from the Economic Injury Disaster Loans program and the Paycheck Protection Program under false pretenses. He was also ordered to pay \$4,239,940.43 in restitution to the SBA.
- *Fresh Mark Inc. Investigation* – An Ohio meat processing company entered into an agreement with the USAO for a hiring manager's involvement in an identity theft scheme and making false statements on government forms. Under the terms of the agreement, the company paid more than \$3.7 million to the federal Crime Victims Fund in November 2024 and agreed to abide by compliance-reporting requirements for a two-year period.
- *U.S. v. Spivak, et al.* – A jury convicted two men for conspiring to artificially inflate prices on “penny stocks” being sold to investors. After a trial that proceeded in two stages for over four weeks in August and September 2024, the two were found guilty of conspiracy to commit securities fraud. Spivak was also found guilty of two counts of wire fraud at trial, then pled guilty to four other counts of wire fraud, two counts of securities fraud, and a separate count of conspiracy to commit securities fraud. His codefendant was found guilty of a securities fraud conspiracy and one count of securities fraud in the second stage of trial. Two other defendants also pled guilty.
- *U.S. v. Barr* – A Pennsylvania man was sentenced to 57 months in prison after pleading guilty to an organized scheme that defrauded the Lucas County Auditor of more than \$622,000. From March 2018 through November 2020, he conspired with others to obtain money by pretending to be legitimate vendors with which the county was approved to do business.
- *U.S. v. Graham, et al.* – Two Ohio men were charged in a bribery scheme in which a municipal prosecutor allegedly agreed to help a criminal defendant with his pending cases in exchange for auto repair work. According to the indictment, Graham was a prosecutor for the Warren Municipal Court. The other defendant had two criminal cases pending in the same court. It is alleged that in October 2019, Graham assisted the codefendant with his criminal cases, and in return, he performed repairs to Graham's truck.
- *U.S. v. Cheney et al.* – Six defendants pled guilty and were sentenced to a total of 355 months for a COVID-19 fraud conspiracy. From March 2020 to August 2021, they obtained nearly \$3,000,000 in federal Pandemic Unemployment Assistance benefits using other people's identities to apply for benefits in several states. The defendants, all residents of Northeast Ohio, were sentenced to numerous years in prison. Dates for future proceedings for a seventh defendant are yet to be determined.

Civil Rights

U.S. Attorney Lutzko led a comprehensive approach dedicated to protecting the civil rights of Ohioans through criminal and civil enforcement actions, community outreach, and a strong partnership with the Department of Justice (DOJ) Civil Rights Division. She also served as a member of the AGAC's Civil Rights Subcommittee. The Office's efforts included the following:

- *U.S. v. Penny* – In January 2024, an Ohio man was sentenced to 18 years in prison followed by three years of supervised release for firebombing a church and attempting to burn it down

because the church supported the LGBTQ+ community. He was convicted of violating the Church Arson Prevention Act, a hate-crime statute, and of using fire and explosives to commit a felony.

- *U.S. v. Durant* – In April 2024, a woman was sentenced to two years of probation and fined \$2,000 after pleading guilty to a misdemeanor charge of intentionally damaging a reproductive healthcare center and violating the Freedom of Access to Clinic Entrances (FACE) Act. She did so after learning that the clinic offered pregnancy counseling, free pregnancy testing, and ultrasounds, but not abortion services.
- *Investigation of Case Western Reserve University* – The USAO entered into a settlement with a private Ohio university to resolve Title IX violations. The agreement requires extensive reforms to ensure the University enacts appropriate response protocols for students and employees to report sex discrimination and to provide adequate support to those affected.
- *U.S. v. Citizens for a Pro-Life Society, Inc. et al.* – A federal lawsuit was filed against two organizations and seven individuals, alleging they violated the FACE Act on two days in June 2021 by physically obstructing entrances to reproductive health facilities.
- *U.S. v. Pedaline and TLP LLC* – A federal lawsuit was filed against an owner and manager of residential rental properties, in Youngstown, Ohio, for engaging in sexual harassment in violation of the Fair Housing Act. The complaint alleged that Pedaline sexually harassed female tenants at properties that he owned or managed in Youngstown since 2009. Pedaline entered into a consent decree with the USAO and agreed to pay a \$10,000 civil penalty and \$189,000 to aggrieved persons allegedly harmed by the defendant's actions.
- *Protecting Places of Worship Forum* – More than 150 leaders from different faiths attended the "Protecting Places of Worship" forum, sponsored by the U.S. Attorney's Office, FBI-Cleveland, and the DOJ's Community Relations Service. U.S. Attorney Lutzko gave opening remarks, and legal and security experts provided information about how to identify, report, and protect against hate crimes.
- *Interfaith Council Initiative* – The USAO reestablished an interfaith council to bring together members of our area's diverse faith communities to address issues that are important to them, including the protection of Civil Rights and the freedom to worship without fear. Ms. Lutzko and USAO staff also visited several different houses of worship and faith-community gatherings during her tenure as part of the Office's continued outreach efforts.
- The USAO partnered with the Beachwood City School District and DOJ's Community Relations Service to hold a Fall 2024 program under the DOJ's "United Against Hate" umbrella, wherein representatives from law enforcement, community organizations, and members of the public engaged in a discussion about practical strategies and skills to constructively address and resolve conflicts and to prevent acts of hate.
- Also in connection with the Department's "United Against Hate" initiative, the USAO sponsored a community engagement program in the Fall of 2023 at The LGBTQ Center in Lakewood. It addressed identifying and reporting hate crimes and related civil rights violations.
- *Voting with a Disability* – In February 2024, U.S. Attorney Lutzko took part in an online forum to highlight concerns and address issues encountered by voters with disabilities. Advocacy groups and others from throughout the state listened to the presentation and identified areas of concern. This event was held in partnership with the USAO for the Southern District of Ohio.

- *Pride in CLE* – Ms. Lutzko and USAO staff marched alongside thousands of community members to support diversity, acceptance, and inclusion for all.

Child Exploitation

Under U.S. Attorney Lutzko's leadership, the Office continued its strong tradition of prosecuting crimes against children, who are among our most vulnerable of victims. Notable case examples include:

- *U.S. v. Zacharias* – In November 2023, a former priest was sentenced to life in prison after a jury found him guilty of sex trafficking three victims who he first met at a Catholic school in Toledo in 1999. The evidence presented at trial showed that Zacharias used his position of authority as a spiritual leader to groom the boys and grow close with their families before ultimately coercing the victims into engaging in commercial sex acts. Zacharias's abuse continued for years, assisted by his exploiting his victims' opioid addictions, which they had developed while taking such drugs to cope with the abuse.
- *U.S. v. Patterson* – A Canton man was sentenced to 26 years in prison after pleading guilty to multiple charges including sexual exploitation of children, receipt and distribution of visual depictions of real minors engaged in sexually explicit conduct, and possession of child sexual abuse materials (CSAM), also referred to as child pornography.
- *U.S. v. Walker* – After FBI agents received a lead that a sexually explicit picture of a two-year old was likely a child residing in Northeast Ohio, agents identified the child and discovered that she spent time at an in-home daycare in Parma, Ohio, where Walker was often present. After he pled guilty to sexual exploitation and child pornography crimes for sexually abusing the child, filming it on his phone, and distributing those videos, Walker was sentenced to 16 years in prison.
- *U.S. v. Deitsch* – In February 2024, an Ohio man was sentenced to 17 and a half years in prison after he pled guilty to coercion and enticement of a minor and transportation of a minor across state lines for illicit sexual activity. A month after his release from prison for the abduction of another female, Deitsch traveled to Illinois to pick up a 15-year-old girl who he had met online, then brought her back to Ohio and engaged in sexual activity with her. After serving his prison term, he was also ordered serve 25 years of supervised release.
- *U.S. v. Wilcoxon* – A Defiance man was sentenced to 30 years in prison in October 2023 after pleading guilty to attempted sexual exploitation of a minor, coercion and enticement of a minor, and receipt and distribution of child sexual abuse materials. According to court documents, he initiated online chats with a purported 13-year-old and sought to meet with her to have sex. A search of his home uncovered more than 11,000 images of child sexual abuse in his possession.

National Security & Cybercrime

National security remained a top priority of all U.S. Attorney's offices, including the Northern District of Ohio. Further, the Office continued to be a recognized leader in cybercrime investigations and prosecutions, seeking to apprehend and punish criminal actors who hide behind their computer screens to wreak immeasurable damage worldwide. Office achievements under U.S. Attorney Lutzko's leadership included the following:

- *U.S. v. John Doe a.k.a. "Brain"* – In August 2024, the Office filed a criminal complaint against a defendant known as "Brain," believed to be based in Europe and responsible for building a multi-national ransomware organization known as Radar. This complaint sought injunctive relief to

prevent additional attacks on victims from occurring and authorized disruption of the ransomware by disabling foreign and domestic domain names, servers, and IP addresses associated with the criminal enterprise. Victims include businesses and organizations located in more than three dozen countries throughout the world, including a trade union and a manufacturing company located in the northern district of Ohio. The FBI estimates monetary losses incurred by individuals and organizations to be in the millions, and the investigation remains open.

- *U.S. v. Vidic* – A Croatian man living in Parma Heights was sentenced to three years in prison for possessing a green card that he fraudulently obtained by concealing that he had been charged with a war crime in Croatia before immigrating to the United States. He also falsely stated that his only past military service was in the Yugoslav Army from 1988 to 1989, when, in fact, he fought with the Serb Army of Krajina and its predecessors during the civil war in the former Yugoslavia from 1991.
- *Trickbot Malware Conspiracy* – Russian national Vladimir Dunaev pled guilty in November 2023 to crimes related to developing and deploying worldwide a malicious software program used to launch cyberattacks against American hospitals, schools, and businesses, including 10 in northern Ohio. Dunaev was responsible for causing those Ohio entities \$3.4 million in losses based on Trickbot ransomware attacks. He was sentenced to 64 months in prison in January 2024. A co-conspirator pled guilty earlier and was sentenced in June 2023.

Drug Trafficking

U.S. Attorney Lutzko emphasized prosecuting and dismantling multi-level drug-trafficking organizations during her tenure, particularly those with international connections and/or that peddled highly toxic poisons such as fentanyl on our communities streets. The Office had numerous successes combatting the scourge of drug-trafficking, including the following examples:

- *U.S. v. Ojeda-Elenes et al.* – Four individuals, including two with direct connections to the Sinaloa Cartel based in Culiacán, Mexico, received sentences in 2024 ranging from two and a half years to 19 years in prison for a drug conspiracy involving more than 240 pounds of fentanyl and nearly 100 pounds of cocaine.
- *U.S. v. Whittaker, et al.* – Fifteen people in Lorain County were charged in a 19-count indictment after authorities seized large quantities of fentanyl that included more than 42,000 thousand fentanyl pills.
- *U.S. v. Hovanec, et al.* – A woman was sentenced to 40 years in prison after pleading guilty to multiple charges, including conspiring to distribute a controlled substance that resulted in the death of her husband (she intentionally injected him with that substance). Her boyfriend and mother were also implicated in the case and sentenced to 18 and 10 years prison, respectively.
- *U.S. v. Johnson, et al.* – Twenty members of a drug trafficking operation operating in Sandusky, Ohio, were charged in a 63-count indictment and alleged to be responsible for trafficking distribution quantities of controlled substances in the Greater Sandusky area, including fentanyl and fentanyl analogues in both powder and counterfeit pill form, as well as methamphetamine and cocaine.
- *U.S. v. May* – A man was sentenced to more than 14 and a half years in prison after pleading guilty to conspiracy to distribute drugs and distributing drugs. He was also ordered to serve 15 years of supervised release following imprisonment. According to court documents and court records, he

led a drug conspiracy in the Youngstown area that distributed fentanyl, cocaine, cocaine base, and heroin.

- *U.S. v. Lumbus, et al.* – Eleven people were charged in an international drug trafficking conspiracy that involved the importation of fentanyl, synthetic opioids, and synthetic cannabinoids into the United States, and the distribution of those drugs in Ohio and other states, including in Ohio's prisons.

U. S. Attorney Lutzko chaired the Office's Heroin-Opioid Task Force, partnering with local law enforcement entities and service providers to address the opioid epidemic in Cuyahoga County. Under her leadership, the Office recently spearheaded a successful effort to more quickly connect persons who have experienced a recent overdose with community intervention organizations that assist willing participants begin their journey toward sobriety.

Financial Collections/Forfeiture

As U.S. Attorney Lutzko recently noted, "Asset forfeiture is a vital tool" used "to punish criminals and financially deter, disrupt, or dismantle criminal activity and criminal organizations. When we take the assets used to commit, or gained as the result of crime, we deprive criminals of the tools they need to engage in criminal activity and, indeed, their reason for committing such crimes in the first place. Additionally, forfeiting criminal assets allows us to return money lost by victims who were scammed by criminals in deceitful and fraudulent schemes or otherwise harmed by crime." In FY 2024 alone, the Office forfeited over \$7.7 million in criminal assets, with more than \$50 million of assets still pending future forfeiture.

In addition, the Office continued its tremendous success collecting debts owed to the government based on false claims, environmental damage, controlled-substance violations, and the like, to return that money to the U.S. taxpayers, and further, recovering money for crime victims to make them whole. In FY 2024, the Office's Financial Litigation Program collected nearly \$28 million in victim restitution and taxpayer recoveries of money improperly taken through fraud, waste, and abuse.

Protecting Our Environment & Animal Welfare

The Office worked closely with the DOJ's Environmental and Natural Resources Division to protect the environment for our district's residents. Notable examples include:

U.S. v. Norfolk Southern Railway Co., et al. – The Norfolk Southern Railway Company agreed to a settlement valued at over \$310 million to hold it accountable, address, and pay for the environmental damages caused by the Feb. 3, 2023, train derailment in East Palestine, Ohio, and fund health monitoring and mental health services for the surrounding communities, and railway safety measures.

U.S. v. Shepherd – A Kenton, Ohio, man was sentenced to probation, community service, a \$5,000 fine, and to pay \$22,508.60 in restitution after pleading guilty to dumping over 7,000 gallons of hazardous pollutants into the Scioto River, killing over 43,000 fish and contaminating an 18-mile stretch of the river.

U.S. v. Mt. Hope Auction – A civil complaint filed in September against Mt. Hope Auction alleged that it placed animals in serious danger and violated the Animal Welfare Act (AWA). At the time of the

complaint's filing, Mt. Hope had been cited for 69 AWA violations in less than two years, including repeated violations for failing to provide veterinary care to sick or injured animals. U.S. Department of Agriculture (USDA) inspectors observed a calf unable to stand, with its legs splayed in an abnormal position and other animals that were so emaciated that their ribs, scapula, pelvic bones, and individual vertebrae were visible. Mt. Hope Auction entered into a consent decree with the USAO and agreed not to deal or exhibit AWA-regulated animal without a license and allow the USDA access to ensure compliance. If Mt. Hope Auction obtains a new USDA license within the next three years, it agrees to a two-year probationary period.

Career History

Ms. Lutzko first joined the Office as a career prosecutor in 2005. As an Assistant United States Attorney, she prosecuted complex criminal cases involving a range of federal violations, including money laundering; campaign-finance violations; public corruption; multiple types of fraud schemes, including healthcare, tax, government-program, investment, and corporate frauds; and complex narcotics conspiracies, from illegal "street" drugs to illegal online pharmacy operations and other doctor-involved drug trafficking. She served as Chief of the Criminal Division's Appeals Unit between January 2017 and June 2023, where she oversaw all briefing and arguments by the Office before the U.S. Court of Appeals for the Sixth Circuit. She also served as Deputy Chief of the Major Fraud and Corruption Unit from 2010 to 2011.

Before becoming an Assistant U.S. Attorney, Ms. Lutzko was an associate at BakerHostetler in Cleveland from 1998 to 2005. She also served as a law clerk from 1997 to 1998 for Judge Alice M. Batchelder of the United States Court of Appeals for the Sixth Circuit.

Ms. Lutzko graduated cum laude from the Georgetown University Law Center in 1997 where she earned her Juris Doctor degree with distinction. She graduated magna cum laude in 1993 from Boston University where she earned her Bachelor of Arts degree.

Contact

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Topic

OFFICE AND PERSONNEL UPDATES

Related Content



PRESS RELEASE

U.S. Attorney’s Office Reports More Than \$3.2M in Criminal and Civil Collections for April-June

The U.S. Attorney’s Office (USAO) has announced that criminal and civil collections for the Northern District of Ohio during the months of April, May, and June totaled \$3,246,089.50.

August 7, 2026

PRESS RELEASE

Toledo Assistant U.S. Attorney Recognized at at International Narcotics Conference

Assistant U.S. Attorney Frank H. Spryszak was recently recognized for his dedication to eradicate illegal narcotics from the U.S. Mail system and noted for his support of the U.S. Postal...

June 4, 2026

PRESS RELEASE

U.S. Attorney’s Office Recognizes Local Patrol Officer for Heroism

U.S. Attorney David M. Toepfer recently recognized a local patrol officer for his acts of heroism to save a mother and her children from a violent criminal.

May 20, 2026



Northern District of Ohio

Main Office:

